

25STCV28550 25STCV28550

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Case Number: 25STCV28550 Hearing Date: July 10, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

10, 2026

CASE NAME: Jose

Villegas Castro v. Marvin Engineering Co, Inc., et al.

CASE NO.: 25STCV28550

DEMURRER

TO FIRST AMENDED COMPLAINT

MOVING PARTY: Defendant

Marvin Engineering Co, Inc.

RESPONDING PARTY(S): Plaintiff Jose Villegas Castro

REQUESTED RELIEF:

1. Demurrer

to the eleventh cause of action (defamation) for failing to state sufficient facts to constitute a cause of action.

TENTATIVE RULING:

1. Demurrer

to the eleventh cause of action is OVERRULED;

2. Marvin

to file their answer within 14 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On September 30, 2025, Plaintiff Jose Villegas Castro

(Plaintiff) filed a complaint against Defendants Marvin Engineering Co.

(Marvin) and Jennifer Garcia (Garcia) (sometimes collectively Defendants) with

eleven (11) causes of action for: (1) disability discrimination; (2) failure to

reasonably accommodate; (3) failure to provide statutory job protected leave;

(4) failure to engage in a prompt, good faith interactive process; (5)

retaliation in violation of FEHA; (6) failure to take all reasonable steps to

prevent and/or remedy discrimination and/or retaliation; (7) wrongful

termination in violation of public policy; (8) retaliation and wrongful

termination in violation of Lab. Code § 232.5; (9) retaliation and wrongful

termination in violation of Lab. Code § 6310; (10) retaliation and wrongful

termination in violation of Lab. Code § 1102.5; and (11) defamation.

According to the Complaint, Plaintiff worked for Marvin. as

a structural mechanic. His supervisor was Garcia. Plaintiff alleges that after

returning from a medical leave for psychological disabilities, Defendants began

discriminating and retaliating against him by assigning menial tasks, mocking

him, and micromanaging him. He further claims he was injured when a supervisor

instructed him to use a modified glue gun that exploded, after which the

employer refused to let him go home despite medical orders and instead

subjected him to a retaliatory "investigation."

Plaintiff asserts that when he complained about unsafe practices and

requested accommodations, the employer suspended him, falsely accused him of

wrongdoing, and ultimately terminated him on a pretextual basis. He alleges

these actions were motivated by disability discrimination, retaliation for

protected leave and safety complaints, and an effort to silence disclosures

about unlawful working conditions.

On January 6, 2026, Marvin filed a demurrer which the court

SUSTAINED with leave to amend.

On April 6, 2026, Plaintiff filed the operative first amended complaint (FAC).

On May 11, 2026, Marvin filed the instant demurrer to the eleventh cause of action in the FAC. On June 26, 2026, Plaintiff filed an opposition. On July 2, 2026, Marvin filed a reply.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3).

Here, the parties were unable to engage in meet and confer despite coordinating a telephonic conference call. (Silva Decl. ¶¶ 2-4.) The requirement is therefore unmet. Still, failure to meet and confer is insufficient grounds to sustain or overrule a demurrer. (CCP § 430.41(a)(4).)

Demurrer –

Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, 147 Cal.App.4th at 747.)

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When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center

(2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94 (*Frantz*).)¿

ANALYSIS:

Eleventh Cause of Action – Defamation

Marvin contends that this claim again fails to sufficiently allege a false statement or publication to a third party. As for the alleged false statement, Marvin contends that the statement that Plaintiff was being terminated for using a modified glue gun is protected by a qualified privilege.

Plaintiff argues he alleged the statement was a false pretext for his termination since he was really terminated for discriminatory reasons, which demonstrates malice to defeat the qualified privilege. He further argues that Marvin and Garcia published the statement to others verbally and in writing via his personnel file thereby satisfying the publication requirement. Plaintiff adds that Marvin applies a nonexistent heightened pleading standard for this claim.

Marvin replies this libel claim is insufficiently plead since Plaintiff did not specifically allege the defamatory statement and admits he is speculating as to its contents. Additionally, publication fails because the only named third party, his supervisor Oscar, also knew the statement was false.

a. Slander vs. Libel

As a threshold matter, the court addresses whether Plaintiff plead slander or libel.

“Libel is defamation that is based on a publication in writing or other fixed representation that can be seen.” (*Medical Marijuana, Inc. v. ProjectCBD.com* (2020) 46 Cal.App.5th 869, 883.) “The general rule is that the words constituting an alleged libel must be specifically identified, if not pleaded verbatim, in the complaint.” (*Id.* at p. 884 [quoting *Kahn v. Bower* (1991) 232 Cal.App.3d 1599, 1612, fn. 5.])

“A false and unprivileged oral communication attributing to a person specific misdeeds or certain unfavorable characteristics or qualities . . . constitutes slander.” (Shively v. Bozanich (2003) 31 Cal.4th 1230, 1242 [citing Civ. Code § 46.]) Slander may be plead by “alleging the substance of the defamatory statement” with less specificity required. (Medical Marijuana, Inc., supra, 46 Cal.App.5th at p. 893 [italics omitted].)

After reviewing the FAC, Plaintiff plead a libel claim. Notably, Plaintiff alleges libel because the alleged statement was accessible in his personnel file. (See FAC ¶¶ 31, 32, 33 [“and others who had access to Plaintiff’s personnel file”]) In other words, Plaintiff’s allegations imply that the alleged statement is within the personnel file. Plaintiff does not otherwise allege how the statement was communicated. Put differently, there are no factual allegations showing an oral communication of the allegedly false statement.

Therefore, this is a libel defamation claim.

b. Sufficiency
of the claim

The elements of a claim for defamation are: (1) intentional publication by defendant; (2) of a statement of fact; (3) that is false; (4) defamatory; (5) unprivileged; and (6) has a natural tendency to injure or that causes special damages. (Taus v. Loftus (2007) 40 Cal.4th 683, 720.)

The elements at issue here are false statement, publication, and privilege.

i.
False Statement

To start, Plaintiff sufficiently identified a false statement. Plaintiff alleges the following statement: “Plaintiff was being suspended for voluntarily using the modified tool” (FAC ¶ 26.) Another statement: “Plaintiff was being terminated because of his voluntary use of the modified tool which resulted in his workplace accident.” (FAC ¶ 29.)

Thus, this element is sufficiently alleged.

ii.

Publication

Publication requires that the statement must be communicated to at least one person other than plaintiff who understands its defamatory meaning and that it refers to plaintiff. (Ibid.; see also *Dible v. Haight Ashbury Free Clinics, Inc.* (2009) 170 Cal.App.4th 843, 854 [noting that publication means “communication to some third person who understands the defamatory meaning of the statement.”]; *Kelly v. General Telephone Co.* (1982) 136 Cal.App.3d 278, 284 [“publication occurs when a statement is communicated to any person other than the party defamed.”])) A general statement that the statement was published is sufficient for the pleadings stage. (CCP § 460.)

Plaintiff sufficiently alleged publication. First, he alleges that on or about October 24, 2024, Garcia, on behalf of Defendant, “communicated to other members of Defendant’s management and/or human resources . . .” that Plaintiff was being terminated for voluntarily using the modified tool. (FAC ¶ 29.) He further alleges that Garcia, on behalf of Defendant, further communicated this false rationale for termination to “others who approved the decision to terminate Plaintiff and others who had access to Plaintiff’s personnel file . . .” (FAC ¶ 31.) Reading this in whole and in context, Plaintiff thus plead that the persons with authority to fire Plaintiff understood that he voluntarily used the modified tool that caused his workplace injury. This is sufficient for the pleadings stage.[1]

Thus, this element is sufficiently alleged.

iii.

Qualified Privileged

“Civil Code section 47 provides in pertinent part that a publication or broadcast is privileged if made: (c) In a communication, without malice, to a person interested therein, (1) by one who is also interested, or (2) by one who stands in such a relation to the person interested as to afford a reasonable ground for supposing the motive for the communication to be innocent, or (3) who is requested by the person interested to give the information.” (*McGrory v.*

Applied Signal Technology, Inc. (2013) 212 Cal.App.4th 1510, 1538

[quotation omitted].) “This common interest privilege is not well-defined, but it has been determined to apply to statements by management and coworkers to other coworkers explaining why an employer disciplined an employee.” (Ibid.)

Here, Plaintiff sufficiently alleged an unprivileged statement. To start, it was made as a pretext for terminating him. (FAC ¶ 30.) Anything else is premature at the pleading stage.[2]

Thus, this element is sufficiently alleged.

CONCLUSION:

For
the foregoing reasons, the court decides the pending motion as follows:

1. Demurrer
to the eleventh cause of action is OVERRULED;

2. Marvin
to file their answer within 14 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 10, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]
Marvin’s review of the allegations is too narrow by advancing the only third party is Oscar. Plaintiff did not allege only Oscar saw the false statements. He alleged that Oscar was included with the other employees who Garcia communicated to. Thus, Marvin’s argument as to Oscar understanding the defamatory nature of the statements is premature.

[2]

Indeed, McGrory, on which Marvin
relies, was a summary judgment case.